

The dispute stems from a credit card agreement, where Plaintiff alleges Defendant applied for a credit card, used the card and incurred debt, and failed to repay the debt. Plaintiff submitted the purported agreement which reflects that the cardmember agrees to the terms of the agreement by using the card.

Defendant, in her Response, invokes her right to settle this claim by virtue of arbitration. She points to a provision of the cardmember agreement, included in Plaintiff's declaration of their qualified witness (page 17 of the purported agreement), that any disputes shall be resolved by arbitration upon demand by either party. It also reflects that a party can trigger this process at any time "notwithstanding that a lawsuit or other proceeding has been previously commenced." (P.18 of purported agreement.)

Plaintiff, in their Reply, doesn't respond to this request.

Analysis

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

It is the moving party's burden to prove the existence of such an agreement. *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951.

In the instant matter, this court finds that there exists a written arbitration agreement between the parties, and the dispute at issue is subject to that agreement. Moreover, although Plaintiff has not explicitly refused to arbitrate, Defendant did request arbitration in their Response, and Plaintiff did not assent.

Thus, this court will compel the parties to arbitrate.

Disposition

Plaintiff's Motion is denied.

Defendant to begin arbitration process within 30 days of this Order, 8/25/26.

Defendant to file Order.

12. 9:00 AM CASE NUMBER: L26-00428
CASE NAME: FORD MOTOR CREDIT COMPANY LLC VS. RICHARD CHO
TO CHANGE VENUE
FILED BY: CHO, RICHARD
TENTATIVE RULING:

Defendant has filed a Motion to change venue. The Motion was originally scheduled for a hearing on 6/23/26, but the court continued it to 8/25/26. Defendant notified Plaintiff of the Motion and the 6/23/26, hearing by mail service. The court then notified both parties of the 8/25/26, hearing.

The Motion is unopposed.

Background

Defendant seeks to move the venue of this lawsuit to Orange County, under Sections 395 and 397 of the CCP.

The Complaint alleges a breach of contract stemming from an auto lease agreement. The purported lease is attached to the Complaint, and indicates that the lessor, a Ford car dealership, has a business address in Concord, CA. The lessor is identified as Future Ford Of Concord, LLC, and the lease is signed by the sales manager.

Defendant argues that Contra Costa County is not the right venue because he resided in Alameda County at the inception of the agreement and now lives in Orange County.

He claims that it will be too difficult to defend his case from several hundre miles away.

Analysis

Section 395(b) of the CCP states that, where an action involves the provision of goods, loans or credit, the proper county for the action is the one in which the parties signed the agreement.

Section 397 of the CCP indicates that a court can change the venue of a trial when the complaint is not in the proper court, or, when the convenience of the witnesses and the ends of justice would be promoted by the change.

In the instant matter, the lease was apparently signed in Contra Costa County, so this county is the proper one. Thus, whether the court honors Defendant's request hinges on convenience and the ends of justice.

However, it is not clear to the court that were would be much in the way of inconvenience to the Defendant if the case were tried in this county. All appearances, except for trial, can be made by zoom without prior approval. And, even for trial, the Defendant can also request to appear by zoom and offer as a reason the cost and inconvenience of attending trial in this county in person.

Disposition

Defendant's Motion is denied.

Plaintiff to file Order and serve on Defendant.